

1 ENGROSSED HOUSE
2 BILL NO. 3581

By: Lepak of the House

3 and

4 Gollihare of the Senate

5
6
7
8 [riots - penalties - scope and penalty provisions -
9 The Oklahoma Governmental Tort Claims Act -
10 liability - effective date]
11
12
13

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1312, as
16 amended by Section 10, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
17 Section 1312), is amended to read as follows:

18 Section 1312. Every person guilty of participating in any riot
19 is punishable as follows:

20 1. If any murder, maiming, robbery, rape or arson was committed
21 in the course of such riot, such person is guilty of a Class A1
22 felony offense punishable in the same manner as a principal in such
23 crime;
24

1 2. If the purpose of the riotous assembly was to resist the
2 execution of any statute of this state or of the United States, or
3 to obstruct any public officer of this state or of the United
4 States, in the performance of any legal duty, or in serving or
5 executing any legal process, such person shall, upon conviction, be
6 guilty of a Class B3 felony offense punishable by imprisonment in
7 the custody of the Department of Corrections for a term not
8 exceeding ten (10) years and not less than two (2) years;

9 3. If such person carried at the time of such riot any species
10 of firearms, or other deadly or dangerous weapon, ~~or was disguised,~~
11 such person shall, upon conviction, be guilty of a Class B3 felony
12 offense punishable by imprisonment in the custody of the Department
13 of Corrections for a term not exceeding ten (10) years and not less
14 than two (2) years;

15 4. If such person directed, advised, encouraged or solicited
16 other persons, who participated in the riot to acts of force or
17 violence, such person shall, upon conviction, be guilty of a Class
18 B1 felony offense punishable by imprisonment in the custody of the
19 Department of Corrections for a term not exceeding twenty (20) years
20 and not less than two (2) years; ~~or~~

21 5. If such person commits any assault and battery in the course
22 of a riot, such person shall, upon conviction, be guilty of a Class
23 D2 felony offense punishable by imprisonment in the custody of the
24 Department of Corrections for a term not exceeding two (2) years;

1 6. If such person commits any aggravated assault and battery in
2 the course of a riot, such person shall, upon conviction, be guilty
3 of a Class B1 felony offense punishable by imprisonment in the
4 custody of the Department of Corrections for a term not exceeding
5 ten (10) years;

6 7. If such person willfully damaged, destroyed, vandalized, or
7 defaced any structure, building, or office space in the course of a
8 riot, such person shall, upon conviction, be guilty of a Class D3
9 felony offense punishable by imprisonment in the custody of the
10 Department of Corrections for a term not exceeding two (2) years if
11 the damage was less than One Thousand Dollars (\$1,000.00) or shall
12 be guilty of a Class D1 felony offense punishable by imprisonment in
13 the custody of the Department of Corrections for a term not
14 exceeding four (4) years if the damage was more than One Thousand
15 Dollars (\$1,000.00);

16 8. Every person who wears a mask, hood, covering, or disguise
17 without lawful excuse and for the purpose of concealing his or her
18 identity in the course of a riot and commits any felony therein
19 shall, upon conviction, be guilty of a Class D3 felony offense
20 punishable by imprisonment in the custody of the Department of
21 Corrections as provided for in subsections B through F of Section
22 20P of this title, or by both such fine and imprisonment; or

23 9. Every person who shall unlawfully obstruct the normal use of
24 any public street, highway or road within this state by actively

1 impeding, hindering or restraining motor vehicle traffic or passage
2 thereon, by standing or approaching motor vehicles thereon, or by
3 endangering the safe movement of motor vehicles or pedestrians
4 traveling thereon shall, upon conviction, be guilty of a ~~misdemeanor~~
5 Class D3 felony offense punishable by imprisonment in the ~~county~~
6 jail custody of the Department of Corrections for a term ~~not~~
7 ~~exceeding one (1) year~~ as provided for in subsections B through F of
8 Section 20P of this title or by a fine of not less than One Hundred
9 Dollars (\$100.00) and not exceeding Five Thousand Dollars
10 (\$5,000.00), or by both such fine and imprisonment. In addition,
11 the person shall be liable for all damages to person or property by
12 reason of the same. As used in this paragraph, "obstruct" means to
13 render impassable or to render passage unreasonably inconvenient or
14 hazardous.

15 In all other cases such person is punishable as for a
16 misdemeanor.

17 SECTION 2. AMENDATORY 51 O.S. 2021, Section 155, as
18 amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2025,
19 Section 155), is amended to read as follows:

20 Section 155. The state or a political subdivision shall not be
21 liable if a loss or claim results from:

- 22 1. Legislative functions;
23
24

1 2. Judicial, quasi-judicial, or prosecutorial functions, other
2 than claims for wrongful criminal felony conviction resulting in
3 imprisonment provided for in Section 154 of this title;

4 3. Execution or enforcement of the lawful orders of any court;

5 4. Adoption or enforcement of or failure to adopt or enforce a
6 law, whether valid or invalid, including, but not limited to, any
7 statute, charter provision, ordinance, resolution, rule, regulation
8 or written policy;

9 5. Performance of or the failure to exercise or perform any act
10 or service which is in the discretion of the state or political
11 subdivision or its employees;

12 6. Civil disobedience, riot, insurrection or rebellion or the
13 failure to provide, or the method of providing, police, law
14 enforcement or fire protection, unless the loss or claim results
15 from instances where the state or political subdivision was aware of
16 the dangerous condition and makes an affirmative decision or
17 establishes a policy to allow for civil disobedience, riot,
18 insurrection, or rebellion;

19 7. Any claim based on the theory of attractive nuisance;

20 8. Snow or ice conditions or temporary or natural conditions on
21 any public way or other public place due to weather conditions,
22 unless the condition is affirmatively caused by the negligent act of
23 the state or a political subdivision;

1 9. Entry upon any property where that entry is expressly or
2 implied authorized by law;

3 10. Natural conditions of property of the state or political
4 subdivision;

5 11. Assessment or collection of taxes or special assessments,
6 license or registration fees, or other fees or charges imposed by
7 law;

8 12. Licensing powers or functions including, but not limited
9 to, the issuance, denial, suspension or revocation of or failure or
10 refusal to issue, deny, suspend or revoke any permit, license,
11 certificate, approval, order or similar authority;

12 13. Inspection powers or functions, including failure to make
13 an inspection, review or approval, or making an inadequate or
14 negligent inspection, review or approval of any property, real or
15 personal, to determine whether the property complies with or
16 violates any law or contains a hazard to health or safety, or fails
17 to conform to a recognized standard;

18 14. Any loss to any person covered by any workers' compensation
19 act or any employer's liability act;

20 15. Absence, condition, location or malfunction of any traffic
21 or road sign, signal or warning device unless the absence,
22 condition, location or malfunction is not corrected by the state or
23 political subdivision responsible within a reasonable time after
24 actual or constructive notice or the removal or destruction of such

1 signs, signals or warning devices by third parties, action of
2 weather elements or as a result of traffic collision except on
3 failure of the state or political subdivision to correct the same
4 within a reasonable time after actual or constructive notice.
5 Nothing herein shall give rise to liability arising from the failure
6 of the state or any political subdivision to initially place any of
7 the above signs, signals or warning devices. The signs, signals and
8 warning devices referred to herein are those used in connection with
9 hazards normally connected with the use of roadways or public ways
10 and do not apply to the duty to warn of special defects such as
11 excavations or roadway obstructions;

12 16. Any claim which is limited or barred by any other law;

13 17. Misrepresentation, if unintentional;

14 18. An act or omission of an independent contractor or
15 consultant or his or her employees, agents, subcontractors or
16 suppliers or of a person other than an employee of the state or
17 political subdivision at the time the act or omission occurred;

18 19. Theft by a third person of money in the custody of an
19 employee unless the loss was sustained because of the negligence or
20 wrongful act or omission of the employee;

21 20. Participation in or practice for any interscholastic or
22 other athletic contest sponsored or conducted by or on the property
23 of the state or a political subdivision;

24

1 21. Participation in any activity approved by a local board of
2 education and held within a building or on the grounds of the school
3 district served by that local board of education before or after
4 normal school hours or on weekends;

5 22. Use of indoor or outdoor school property and facilities
6 made available for public recreation before or after normal school
7 hours or on weekends or school vacations, except those claims
8 resulting from willful and wanton acts of negligence. For purposes
9 of this paragraph:

10 a. "public" includes, but is not limited to, students
11 during nonschool hours and school staff when not
12 working as employees of the school, and

13 b. "recreation" means any indoor or outdoor physical
14 activity, either organized or unorganized, undertaken
15 for exercise, relaxation, diversion, sport or
16 pleasure, and that is not otherwise covered by
17 paragraph 20 or 21 of this section;

18 23. Any court-ordered, Department of Corrections or county
19 approved work release program; provided, however, this provision
20 shall not apply to claims from individuals not in the custody of the
21 Department of Corrections based on accidents involving motor
22 vehicles owned or operated by the Department of Corrections;

23 24. The activities of the state military forces when on state
24 active duty orders or on Title 32 active duty orders;

1 25. Provision, equipping, operation or maintenance of any
2 prison, jail or correctional facility, or injuries resulting from
3 the parole or escape of a prisoner or injuries by a prisoner to any
4 other prisoner; provided, however, this provision shall not apply to
5 claims from individuals not in the custody of the Department of
6 Corrections based on accidents involving motor vehicles owned or
7 operated by the Department of Corrections;

8 26. Provision, equipping, operation or maintenance of any
9 juvenile detention facility, or injuries resulting from the escape
10 of a juvenile detainee, or injuries by a juvenile detainee to any
11 other juvenile detainee;

12 27. Any claim or action based on the theory of manufacturer's
13 products liability or breach of warranty, either expressed or
14 implied;

15 28. Any claim or action based on the theory of indemnification
16 or subrogation; provided, however, a political subdivision as
17 defined in ~~subparagraphs of paragraph 11~~ 12 of Section 152 of this
18 title may enter into a contract with a contract operator or any
19 railroad operating in interstate commerce that sells a property
20 interest or provides services to a regional transportation
21 authority, or allows the regional transportation authority to use
22 the railroad's property or tracks for the provision of public
23 passenger rail service, providing for the allocation of financial
24 responsibility, indemnification, or the procurement of insurance for

1 the parties for all types of claims or damages, provided that funds
2 have been appropriated to cover the resulting contractual obligation
3 at the time the contract is executed. The acquisition of commercial
4 liability insurance to cover the activities of the regional
5 transportation authority, contract operator or railroad shall not
6 operate as a waiver of any of the liabilities, immunities or
7 defenses provided for political subdivisions pursuant to the
8 provisions of The Governmental Tort Claims Act. A contract entered
9 into under this paragraph shall not affect rights of employees under
10 the Federal Employers Liability Act or the Federal Railway Labor
11 Act;

12 29. Any claim based upon an act or omission of an employee in
13 the placement of children;

14 30. Acts or omissions done in conformance with then current
15 recognized standards;

16 31. Maintenance of the state highway system or any portion
17 thereof unless the claimant presents evidence which establishes
18 either that the state failed to warn of the unsafe condition or that
19 the loss would not have occurred but for a negligent affirmative act
20 of the state;

21 32. Any confirmation of the existence or nonexistence of any
22 effective financing statement on file in the ~~office~~ Office of the
23 Secretary of State made in good faith by an employee of the ~~office~~
24

1 Office of the Secretary of State as required by the provisions of
2 Section 1-9-320.6 of Title 12A of the Oklahoma Statutes;

3 33. Any court-ordered community sentence;

4 34. Remedial action and any subsequent related maintenance of
5 property pursuant to and in compliance with an authorized
6 environmental remediation program, order, or requirement of a
7 federal or state environmental agency;

8 35. The use of necessary and reasonable force by a school
9 district employee to control and discipline a student during the
10 time the student is in attendance or in transit to and from the
11 school, or any other function authorized by the school district;

12 36. Actions taken in good faith by a school district employee
13 for the out-of-school suspension of a student pursuant to applicable
14 Oklahoma Statutes; or

15 37. Use of a public facility opened to the general public
16 during an emergency.

17 SECTION 3. This act shall become effective November 1, 2026.
18
19
20
21
22
23
24

1 Passed the House of Representatives the 11th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate